

#	Case Name	Tentative
		Accordingly, the demurrer to the third cause of action with respect to Fernandez is OVERRULED and SUSTAINED as to Exp Realty. Plaintiffs have 20 days leave to amend. The case management conference is continued to November 16, 2026 at 9:00 a.m. in Department C28. The order to show cause is discharged. Defendants shall give notice of this ruling.
54.	Ozzy Vista Panorama LLC v. Jack A. Hanson, Trustee of the Hanson Family Trust dated October 6, 2022 2026-01550880	The motion by defendants Jack A. Hanson and Denise E. Hanson, Co-Trustees of the Hanson Family Trust dated October 6, 2022, to strike portions of plaintiff Ozzy Vista Panorama LLC's Complaint is GRANTED, with leave to amend. (Code Civ. Proc., §§ 435, 436 [authorizing motion].) The Complaint fails to allege sufficient specific facts supporting punitive damages. (Civ. Code, § 3294 [authorizing punitive damages]; <i>Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority</i> (2022) 83 Cal.App.5th 1137, 1193 [claims for punitive damages "must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious ... [p]unitive damages may not be pleaded generally"]; <i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210 ["despicable" conduct requirements].) The court orders that ¶ 31 of the Complaint, and that portion of the prayer for relief reading "punitive damages" [Complaint at 8:14] are stricken. Plaintiff is granted 15 days to file a First Amended Complaint, if at all. Moving parties shall give notice of this ruling.
55.	Wang v. Yan 2026-01559681	Plaintiffs Jingfang Wang and Zhihu Yu's Verified Petition for Leave to File a Civil Conspiracy Claim pursuant to Civ. Code §1714.10 is DENIED without prejudice. Plaintiffs have failed to file a proof of service of the petition no later than five court days before the time appointed for the hearing. (See Cal. Rules of Court, Rule 3.1300, subd. (c).) Plaintiffs also failed to provide supporting affidavits with their petition. Civ. Code §1714.10(a) (the filing of the verified petition must have "supporting affidavits stating facts upon which the liability is based.")

#	Case Name	Tentative
		Should Plaintiffs still wish to pursue the proposed amendments to include a conspiracy claim against Defendants Richter, Mello and Fast Eviction Service, Plaintiff shall file and validly serve a renewed petition, accompanied by evidence and the proposed pleading, and file a proof of service that complies with the requirements of the Code of Civil Procedure. Clerk shall provide notice. Service of the notice upon Plaintiffs shall be by U.S. Mail.
56.	Applegate v. Everts 2025-01507318	Defendant Brockton Everts' Motion to Set Aside the Default is CONTINUED to September 21, 2026 at 2:00 p.m. in Department C28. "Before filing any document, a party must serve . . . one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule." (CRC, Rule 8.817, subd. (a)(1).) In addition, "[t]he party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . ." (CRC, Rule 8.817, subd. (a)(2).) "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (CRC, Rule 3.1300, subd. (c).) Here, Defendant has failed to file a valid proof of service of the motion on the opposing party. Therefore, the hearing is continued to allow Defendant to properly serve and file the motion and proof of service in accordance with the Code. Defendant shall serve the motion and supporting documents no later than July 17, 2026, and file a proof of service with the court within 5 days of service. Plaintiff is urged to familiarize himself with the Rules of Court as well as the Code of Civil Procedure. "Mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985.) Clerk shall provide notice of this ruling.
57.	OCMH Inc. v. Daniel	Defendant Shipjoy, LLC's motion to set aside default and default judgment is GRANTED. (Code Civ. Proc., § 473, subd. (b).)